

JACKSON, J., dissenting

crimes while in office. Who will be responsible for drawing the crucial “‘line between [the President’s] personal and official affairs’”? *Ante*, at 629. To ask the question is to know the answer. A majority of this Court, applying an indeterminate test, will pick and choose which laws apply to which Presidents, by labeling his various allegedly criminal acts as “core,” “official,” or “manifestly or palpably” beyond the President’s authority.

Ironically, then, while purportedly seeking to transcend politics, see *ante*, at 641–642, the Court today displaces the independent judgments of the political branches about the circumstances under which the criminal law should apply. Effectively, the Court elbows out of the way both Congress and prosecutorial authorities within the Executive Branch, making itself the indispensable player in all future attempts to hold former Presidents accountable to generally applicable criminal laws. “The Framers, however, did not make the judiciary the overseer of our government.” *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U. S. 579, 594 (1952) (Frankfurter, J., concurring). To be sure, this Court may sometimes “have to intervene in determining where authority lies as between the democratic forces in our scheme of government.” *Id.*, at 597. But it has long been understood that “we should be wary and humble” when doing so. *Ibid.*

The majority displays no such caution or humility now. Instead, the Court today transfers from the political branches to itself the power to decide when the President can be held accountable. What is left in its wake is a greatly weakened Congress, which must stand idly by as the President disregards its criminal prohibitions and uses the powers of his office to push the envelope, while choosing to follow (or not) existing laws, as he sees fit. We also now have a greatly empowered Court, which can opt to allow Congress’s policy judgments criminalizing conduct to stand (or not) with respect to a former President, as a matter of its own prerogative.